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Case Number: 25PSCV01304 Hearing Date: August 31, 2026 Dept: 6

CASE

NAME: Robert

G. Leunis v. Miriam Galvan, et al.

1. Defendant

SoCal Title Company's Motion to Strike Punitive Damages as Asserted in the Second Amended Complaint; and

2.

Plaintiff Robert G. Leunis' Motion for Leave of Court to File

Third Amended Complaint

TENTATIVE

RULING

The Court GRANTS Defendant SoCal Title Company's Motion to Strike and hereby strikes the following portions of the TAC as to SoCal Title Company without leave to amend:

1. Paragraph

63, lines 16 through 18, as to the words "Such ratification renders SoCal Title liable for punitive and exemplary damages in an amount sufficient to punish the corporation and deter others from engaging in or ignoring fraudulent real estate practices.";

2. Paragraph 66,

in its entirety; and

3.

Prayer for

Relief, paragraph 9, in its entirety.

The Court GRANTS Plaintiff Robert G. Leunis' Motion for Leave of Court to File Third Amended Complaint. Plaintiff must file and serve the TAC within five calendar days of the Court's order.

Plaintiff is ordered to give notice of the Court's rulings within five calendar days of this order.

BACKGROUND

This is an elder abuse case. On April 11, 2025, plaintiff Robert G. Leunis (Plaintiff) filed this action against defendants Miriam Galvan (Galvan), SoCal Title Company (SoCal Title), Golden Star Team, LLC, Timmy LA, Xin Zhang, NCL Eaglepoint Investments, LLC (NCL), FCI Lender Services, Inc., and All Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in the Complaint (collectively, Defendants) and Does 1 through 25, alleging causes of action for quiet title, financial elder abuse, declaratory relief, cancellation of instruments, and slander of title. On September 17, 2025, Plaintiff dismissed the Second, Third, and Fifth Causes of Action against NCL without prejudice.

On April 8, 2026, Plaintiff filed the First Amended Complaint (FAC) against the same Defendants, alleging the same causes of action.

On July 1, 2026, Plaintiff filed the operative Second Amended Complaint (SAC) against the same Defendants, alleging the same causes of action.

On July 15, 2026, Plaintiff moved for leave to file a Third Amended Complaint. The Motion for Leave to Amend is unopposed.

On August 4, 2026, Defendant SoCal Title moved to strike punitive damages as asserted in the Second Amended Complaint. The Motion to Strike is unopposed.

LEGAL

STANDARD – Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Id., § 436.)

PRELIMINARY

ISSUE – Motion to Strike

“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322, subd. (a).) SoCal Title’s Motion to Strike fails to comply with this requirement. The Court admonishes SoCal Title to comply with the California Rules of Court going forward.

DISCUSSION –

Motion to Strike

Meet and Confer

Per Code of Civil Procedure section

435.5, subdivision (a), SoCal Title was required to meet and confer in person, by telephone, or by video conference before bringing this Motion to Strike. (Code Civ. Proc., § 435.5, subd. (a).) SoCal Title failed to meet and confer by any of these methods. (Coverdale Decl., ¶¶ 2-4.) Nevertheless, the Court may not deny a motion to strike for failure to adequately meet and confer. (Code Civ. Proc., § 435.5, subd. (a)(4).) The Court admonishes SoCal Title to comply with the Code of Civil Procedure going forward.

Punitive Damages

A claim for punitive damages is subject to a motion to strike when the allegations fail to rise to the level of malice, oppression, or fraud

necessary under Civil Code section 3294. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 64.)

Defendant

SoCal Title Company seeks to strike Plaintiff's punitive damages allegations from the SAC without leave to amend, arguing that the pleading fails to allege specific facts satisfying Civil Code section 3294, subdivision (b), despite prior opportunities to amend. SoCal contends Plaintiff merely restates prior allegations of investigative failures and adds conclusory recitations of the statutory elements, without pleading facts showing that SoCal acted with malice, oppression, or fraud. As to corporate liability, SoCal argues the pleading does not identify any officer, director, or managing agent, describe that person's authority, or allege facts establishing actual knowledge, authorization, or ratification of the challenged conduct. SoCal further asserts that the allegations describe routine operational conduct in handling a single transaction rather than corporate policymaking, and that inferring authorization solely from the fact that the documents were recorded would render section 3294, subdivision (b), meaningless. SoCal argues that further leave to amend should be denied as futile because Plaintiff has already had several opportunities—including the proposed TAC—and has failed to cure the identified defects.

The

Court finds SoCal Title's Motion to Strike persuasive. The SAC contains conclusory allegations regarding SoCal Title's actions having been authorized or ratified by its corporate officers, directors, and managing agents. (See *Perkins v. Superior Ct.* (1981) 117 Cal.App.3d 1, 6 [conclusory allegations not disregarded on a motion to strike if they are supported by factual allegations in the complaint as a whole].) The SAC and the proposed TAC fail to identify who such authorizing/ratifying persons were and what advance knowledge they had from which such authorization or ratification could be deduced or inferred. (SAC, ¶ 63; TAC, ¶ 69; Civ. Code, § 3294, subd. (b).)

Moreover,

the Court construes Plaintiff's lack of opposition to this Motion to Strike as a concession that SoCal Title's arguments are meritorious. (*D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court GRANTS the Motion to Strike and hereby strikes the following portions of the SAC as to SoCal Title Company without leave to amend:

1. Paragraph

63, lines 16 through 18, as to the words “Such ratification renders SoCal Title liable for punitive and exemplary damages in an amount sufficient to punish the corporation and deter others from engaging in or ignoring fraudulent real estate practices.”;

2. Paragraph 66,
in its entirety; and

3.

Prayer for
Relief, paragraph 9, in its entirety.

LEGAL

STANDARD – Leave to Amend

Code of Civil

Procedure section 473, subdivision (a)(1) provides, in relevant part: “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).) “This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule

3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line

number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

PRELIMINARY

ISSUES – Leave to Amend

Plaintiff's Motion cites a case that the Court could not find and that does not appear to exist, i.e., Audition Power House v. Better Business Bureau (2007) 149 Cal.App.4th 1540, 1550. (Motion, 8:13-15.) The citation provided instead leads to either City of Monte Sereno v. Padgett (2007) 149 Cal.App.4th 1530 or City of Watsonville v. Corrigan (2007) 149 Cal.App.4th 1542. The Court could not find a case by the name of Audition Power House v. Better Business Bureau. "A lawyer shall not: (1) knowingly* make a false statement of fact or law to a tribunal* or fail to correct a false statement of material fact or law previously made to the tribunal* by the lawyer..." (Rules Prof. Conduct, rule 3.3, subd. (a)(1), asterisks in original; Noland v. Land of the Free, L.P. (2025) 114 Cal.App.5th 426, 449 [attorney sanctioned for appeal comprised primarily of false citations].) The Court will discuss this with Plaintiff's counsel at the hearing on this Motion.

DISCUSSION –

Leave to Amend

Plaintiff seeks leave to amend to file a Third Amended Complaint (TAC) that would add Trust One Escrow, Inc. (Trust One) as a defendant to the financial elder abuse cause of action and assert a new Sixth Cause of Action for negligence against Trust One. Plaintiff contends the amendments are based on newly discovered evidence—records produced on June 12, 2026 in response to a subpoena to Trust One—that revealed Trust One's

role as escrow holder in processing the allegedly forged documents, a role Plaintiff asserts was not apparent earlier from the recorded instruments, which identified SoCal Title Company. Plaintiff argues the proposed amendments arise from the same general set of facts already at issue, will not require significant additional discovery, and will not mislead or prejudice any party under California's policy favoring liberal allowance of amendment. Plaintiff further asserts he acted diligently, bringing the Motion promptly upon discovery and well before trial, with no trial date set. Plaintiff maintains the amendments serve the interests of justice by ensuring that all parties allegedly responsible for the fraudulent transaction are joined and held accountable.

The Court finds Plaintiff's Motion persuasive. First, policy strongly favors leave to amend. (*Kittredge Sports Co. v. Superior Court*, *supra*, 213 Cal.App.3d at p. 1047.) Second, Plaintiff's Motion complies with the requirements of rule 3.1324 of the California Rules of Court. Plaintiff's counsel's declaration demonstrates the effect of the proposed amendments, why the proposed amendments are necessary and proper, when Plaintiff discovered the facts supporting leave to amend, and why amendment was not sought earlier. (Larsen Decl., ¶¶ 3-14; Cal. Rules of Court, rule 3.1324, subd. (b).) Plaintiff also provided a clean copy and redlined copy of the proposed TAC. (Larsen Decl., Exs. 1-2; Cal. Rules of Court, rule 3.1324, subd. (a).) The Court also notes that no trial is currently pending and the Motion is unopposed, which the Court construes as a concession that Plaintiff's Motion is meritorious and that no party will be prejudiced by the amendment. (See *Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 488; *D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court GRANTS Plaintiff's Motion for Leave to Amend. Plaintiff must file and serve the TAC complying with the Court's order on the Motion to Strike within five calendar days of the Court's order.

CONCLUSION

The Court GRANTS Defendant SoCal Title Company's Motion to Strike and hereby strikes the following portions of the TAC as to SoCal Title Company without leave to amend:

1. Paragraph

63, lines 16 through 18, as to the words "Such ratification renders SoCal Title liable for punitive and exemplary damages in an amount sufficient to punish the corporation and deter others from engaging in or ignoring fraudulent real estate practices.";

2. Paragraph 66,
in its entirety; and

3.

Prayer for

Relief, paragraph 9, in its entirety.

The Court GRANTS Plaintiff Robert G. Leunis' Motion for Leave of Court to File Third Amended Complaint. Plaintiff must file and serve the TAC complying with the Court's order on the Motion to Strike within five calendar days of the Court's order.

Plaintiff is ordered to give notice
of the Court's rulings within five calendar days of this order.